

Smt Omwati v. State of U.P.

High Court of Judicature at Allahabad · Single Judge · 15 March 2024 · Application u/s 482 No. 8323 of 2024 · **Notice issued; no coercive action till next listing**

HEADNOTE

On a s.482 CrPC challenge to a 2013 summoning order in a 2008 s.135/138 Electricity Act prosecution—where a final report after alleged payment of dues was later rejected on the licensee's application—the Allahabad High Court held that the matter required consideration, issued notice, and stayed coercive action till the next listing, without deciding the Clause 6.15(b) limitation plea.

FACTUAL SUMMARY

Smt Omwati challenged the 19 March 2013 summoning order in Case No. 236 of 2013 under sections 135/138 of the Electricity Act (Crime No. 119 of 2008, P.S. Khair, Aligarh). Counsel said dues were paid after the 9 April 2008 FIR and a final report filed on 11 May 2008, yet five years later the Electricity Department alleged non-payment and the special court rejected the final report and issued summons. She learned of the case on 24 January 2024 when police arrived with a warrant, and invoked Clause 6.15(b).

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

s.482 CrPC interlocutory listing in s.135/138 prosecution

HOLDING

Without deciding whether the 19.03.2013 summoning order or the s.135/138 Electricity Act proceedings should be quashed, or whether Clause 6.15(b) of the Electricity Supply Code, 2005 barred recovery after two years, the Court held that the matter required consideration, issued notice to opposite party no. 2, and directed that no coercive action be taken against the applicant till the next date of listing. ¶ 4-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE SUMMONING ORDER DATED 19.03.2013 AND CASE NO. 236 OF 2013 UNDER SS. 135/138 OF THE ELECTRICITY ACT ARE LIABLE TO BE QUASHED

¶ 2-4

NOT DECIDED — WHETHER CLAUSE 6.15(B) OF THE ELECTRICITY SUPPLY CODE, 2005 BARS RECOVERY AFTER TWO YEARS FROM WHEN THE SUM FIRST BECAME DUE

Raised by counsel; the Court only held that the matter required consideration. ¶ 3-4